

****May 21, 2025****

****Sanction – Cross-Border Processing****

The National Supervisory Authority for Personal Data Processing completed, in April 2025, an investigation into the operator Data Diggers Market Research SRL and found a violation of the provisions of Article 15 and Article 14 in relation to Article 12 paragraph (1) and Article 6 paragraph (1) of Regulation (EU) 2016/679 (GDPR).

As such, the operator was sanctioned with:

- a fine of 24,886 Lei, equivalent to the amount of 5,000 Euro, for violating the provisions of Article 15 of Regulation (EU) 2016/679, in relation to Article 12 paragraph (1) of Regulation (EU) 2016/679;
- a fine of 9,954.40 Lei, equivalent to the amount of 2,000 Euro, for violating the provisions of Article 14 of Regulation (EU) 2016/679, in relation to Article 12 paragraph (1) of Regulation (EU) 2016/679;
- a fine of 24,886 Lei, equivalent to the amount of 5,000 Euro, for violating the provisions of Article 6 paragraph (1) of Regulation (EU) 2016/679.

The investigation was initiated following complaints received from two other data protection authorities in the EU regarding complaints made by two individuals from these countries against the operator Data Diggers Market Research SRL.

Considering that the operator Data Diggers Market Research SRL has its main office in Romania, the National Supervisory Authority acted as the lead supervisory authority for the cross-border processing carried out by the operator Data Diggers Market Research SRL, in accordance with the provisions of Article 56 and Article 61 of the GDPR.

During the investigation, it was found that the operator did not provide the complainants with complete information as a result of exercising the right of access to personal data, which constitutes a violation of the provisions of Article 15 of Regulation (EU) 2016/679, in relation to Article 12 paragraph (1) of the same regulation.

At the same time, the operator did not provide, at the time of the first communication with the complainants, the information that it was obliged to communicate to the data subjects, thus violating the provisions of Article 14 paragraphs (1) and (2) of Regulation (EU) 2016/679, in relation to Article 12 paragraph (1) of the same regulation.

Furthermore, the operator did not provide evidence of compliance with one of the conditions regarding the legality of processing the personal data of the complainants, which represents a violation of the provisions of Article 6 paragraph (1) of Regulation (EU) 2016/679.

At the same time, under Article 58 paragraph (2) letter d) of Regulation (EU) 2016/679, the National Supervisory Authority imposed on the operator the corrective measure to implement regular training for the company's staff regarding the procedure that must be followed for the correct handling of requests submitted by data subjects and regarding compliance with the legality conditions of data processing, in relation to Article 6 of Regulation (EU) 2016/679.

****Legal and Communication Department****

****N.S.A.P.D.C.P****